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ROSAURA VILLICANA
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ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
05/08/2024
Clerk of the Court
BY: MARK UDAN
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

CGC-24-614472

ROSAURA VILLICANA, an individual, and MARGARITO PEREZ GRANADOS, an individual,

Plaintiffs,

vs.

FORD MOTOR COMPANY, a Delaware Corporation, and HANSEL FORD, INC., a California Corporation d/b/a HANSEL FORD, and DOES 1 through 10, inclusive,

Defendants.

Case No.:
Unlimited Jurisdiction

COMPLAINT

1. **VIOLATION OF SONG-BEVERLY ACT - BREACH OF EXPRESS WARRANTY**
2. **VIOLATION OF SONG-BEVERLY ACT - BREACH OF IMPLIED WARRANTY**
3. **VIOLATION OF THE SONG-BEVERLY ACT SECTION 1793.2**
4. **NEGLIGENT REPAIR**

Plaintiffs, ROSAURA VILLICANA, an individual, and MARGARITO PEREZ GRANADOS, an individual ("Plaintiffs"), allege as follows against Defendant FORD MOTOR COMPANY, a Delaware Corporation ("FORD MOTOR COMPANY"), and HANSEL FORD, INC., a California Corporation d/b/a HANSEL FORD ("HANSEL FORD"), and DOES 1 through 10 inclusive, on information and belief, formed after a reasonable inquiry under the circumstances:

DEMAND FOR JURY TRIAL

1. Plaintiffs, ROSAURA VILLICANA and MARGARITO PEREZ GRANADOS, hereby demand trial by jury in this action.

GENERAL ALLEGATIONS

2. Plaintiffs, ROSAURA VILLICANA and MARGARITO PEREZ GRANADOS, are individuals residing in the City of Santa Rosa, State of California.

3. Defendant, FORD MOTOR COMPANY, is and was a Delaware Corporation operating and doing business in the State of California.

4. Defendant, HANSEL FORD, is and was a California Corporation registered to do business in the State of California with its principal place of business in the City of Petaluma, State of California.

5. These causes of causes of action arise out of warranty and repair obligations of FORD MOTOR COMPANY in connection with a vehicle Plaintiffs purchased and for which FORD MOTOR COMPANY issued a written warranty. The warranty was not issued by the selling dealership.

6. Plaintiffs do not know the true names and capacities, whether corporate, partnership, associate, individual, or otherwise of Defendant issued herein as Does 1 through 10, inclusive, under the provisions of section 474 of the California Code of Civil Procedure. Defendant Does 1 through 10, inclusive, are in some manner responsible for the acts, occurrences, and transactions set forth herein, and are legally liable to Plaintiffs. Plaintiffs will seek leave to amend this Complaint to set forth the true names and capacities of the fictitiously named Defendant, together with appropriate charging allegations, when ascertained.

7. All acts of corporate employees as alleged were authorized or ratified by an officer,

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director, or managing agent of the corporate employer.

8. Each Defendant, whether actually or fictitiously named herein, was the principal, agent (actual or ostensible), or employee of each other Defendant, and in acting as such principal or within the course and scope of such employment or agency, took some part in the acts and omissions hereinafter set forth by reason of which each Defendant is liable to Plaintiffs for the relief prayed for herein.

9. On February 8, 2020, Plaintiffs purchased a 2019 Ford F-550, having VIN No.: 1FDUF5GT7KDA23120 ("the Subject Vehicle"). These causes of action arise out of warranty and repair obligations of FORD MOTOR COMPANY in connection with a vehicle that Plaintiffs purchased and for which FORD MOTOR COMPANY issued a written warranty. The warranty was not issued by the selling dealership.

10. FORD MOTOR COMPANY warranted the Subject Vehicle and agreed to preserve or maintain the utility or performance of Plaintiffs' vehicle or to provide compensation if there was a failure in such utility or performance. In connection with the purchase, Plaintiffs received various warranties, inter alia, a 3-year/36,000 mile express bumper to bumper warranty, a 5-year/100,000 mile powertrain warranty which, inter alia, covers the engine and the transmission, as well as various emissions warranties that exceed the time and mileage limitations of the bumper to bumper and powertrain warranties.

11. The Subject Vehicle was delivered to Plaintiffs with serious defects and nonconformities to warranty and developed other serious defects and nonconformities to warranty including, but not limited to, electrical, engine, and transmission system defects.

12. Plaintiffs first presented the Subject Vehicle for repairs in March 2023 and reported the Subject Vehicle entering limp mode and displaying the "Reduced Power" message on the dashboard upon driving uphill. In addition, the transmission slipped upon accelerating.

13. In September 2023, Plaintiffs presented the Subject Vehicle again for exhibiting harsh gear shifts.

14. Plaintiffs hereby revoke acceptance of the sales contract.

15. Pursuant to the Song-Beverly Consumer Warranty Act (hereinafter the "Act") Civil

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Code sections 1790 *et seq.* the Subject Vehicle constitutes "consumer goods" used primarily for family or household purposes, and Plaintiffs have used the vehicle primarily for those purposes.

16. Plaintiffs are the "buyers" of consumer goods under the Act.

17. Defendant, FORD MOTOR COMPANY, is a "manufacturer" and/or "distributor" under the Act.

18. Plaintiffs hereby demand trial by jury in this action.

FIRST CAUSE OF ACTION

Violation of the Song-Beverly Act – Breach of Express Warranty

(Against Defendant FORD MOTOR COMPANY)

19. Plaintiffs incorporate herein by reference each and every allegation contained in the preceding and succeeding paragraphs as though herein fully restated and re-alleged.

20. The Subject Vehicle was sold to Plaintiffs with express warranties that the Subject Vehicle would be free from defects in materials, nonconformity, or workmanship during the applicable warranty period and to the extent that the Subject Vehicle had defects, Defendant FORD MOTOR COMPANY would repair the defects.

21. The Subject Vehicle was delivered to Plaintiffs with serious defects and nonconformities to warranty and developed other serious defects and nonconformities to warranty including, but not limited to, electrical, engine, and transmission system defects.

22. Pursuant to the Song-Beverly Consumer Warranty Act (hereinafter the "Act") Civil Code sections 1790 *et seq.* the vehicle constitutes "consumer goods" used primarily for family or household purposes, and Plaintiffs have used the Subject Vehicle primarily for those purposes.

23. Plaintiffs are the "buyers" of consumer goods under the Act.

24. Defendant, FORD MOTOR COMPANY, is a "manufacturer" and/or "distributor" under the Act.

25. The foregoing defects and nonconformities to warranty manifested themselves in the Subject Vehicle within the applicable express warranty period. The nonconformities substantially impair the use, value, and/or safety of the vehicle.

26. Plaintiffs delivered the vehicle to an authorized FORD MOTOR COMPANY repair

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facility for repair of the nonconformities.

27. Defendant was unable to conform Plaintiffs' vehicle to the applicable express warranty after a reasonable number of repair attempts.

28. Notwithstanding Plaintiffs' entitlement, Defendant FORD MOTOR COMPANY has failed to either promptly replace the new motor vehicle or to promptly make restitution in accordance with the Song-Beverly Act.

29. By failure of Defendant to remedy the defects as alleged above or to issue a refund or replacement vehicle, Defendant is in breach of its obligations under the Song-Beverly Act.

30. Under the Act, Plaintiffs are entitled to reimbursement of the price paid for the vehicle less that amount directly attributable to use by the Plaintiff prior to the first presentation of the nonconformities.

31. Plaintiffs are entitled to all incidental, consequential, and general damages resulting from Defendant's failure to comply with its obligations under the Song-Beverly Act.

32. Plaintiffs are entitled under the Song-Beverly Act to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees, reasonably incurred in connection with the commencement and prosecution of this action.

33. Because Defendant willfully violated the Song-Beverly Act, Plaintiffs are entitled, in addition to the amounts recovered, a civil penalty of up to two times the amount of actual damages for FORD MOTOR COMPANY's willful failure to comply with its responsibilities under the Act.

SECOND CAUSE OF ACTION

Violation of the Song-Beverly Act – Breach of Implied Warranty

(Against Defendant FORD MOTOR COMPANY)

34. Plaintiffs incorporate herein by reference each and every allegation contained in the preceding and succeeding paragraphs as though herein fully restated and re-alleged.

35. FORD MOTOR COMPANY and its authorized dealership at which Plaintiffs purchased the Subject Vehicle had reason to know the purpose of the Subject Vehicle at the time of sale of the Subject Vehicle. The sale of the Subject Vehicle was accompanied by implied

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warranties provided for under the law.

36. Among other warranties, the sale of the Subject Vehicle was accompanied by an implied warranty that the Subject Vehicle was merchantable pursuant to Civil Code section 1792.

37. Pursuant to Civil Code section 1791.1 (a), the implied warranty of merchantability means and includes that the Vehicle will comply with each of the following requirements: (1) The Vehicle will pass without objection in the trade under the contract description; (2) The Vehicle is fit for the ordinary purposes for which such goods are used; (3) The Vehicle is adequately contained, packaged, and labelled; (4) The Vehicle will conform to the promises or affirmations of fact made on the container or label.

38. The Subject Vehicle was not fit for the ordinary purpose for which such goods are used because it was equipped with one or more defective vehicle systems/components.

39. The Subject Vehicle did not measure up to the promises or facts stated on the container or label because it was equipped with one or more defective vehicle systems/components.

40. The Subject Vehicle was not of the same quality as those generally accepted in the trade because it was sold with one or more defective vehicle systems/components which manifested as electrical, engine, and transmission system defects.

41. Upon information and belief, the defective vehicle systems and components were present at the time of sale of the Subject Vehicle; thus, extending the duration of any implied warranty under *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304–1305 and other applicable laws.

42. Plaintiffs are entitled to justifiably revoke acceptance of the Subject Vehicle under Civil Code, section 1794, *et seq*.

43. Plaintiffs hereby revoke acceptance of the Subject Vehicle.

44. Plaintiffs are entitled to replacement or reimbursement pursuant to Civil Code, section 1794, *et seq.*

45. Plaintiffs are entitled to rescission of the contract pursuant to Civil Code, section 1794, *et seq.* and Commercial Code, section 2711.

46. Plaintiffs are entitled to recover any incidental, consequential, and/or "cover"

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damages under Commercial Code, sections 2711, 2712, and Civil Code, section 1794, *et seq.*

THIRD CAUSE OF ACTION

Violation of the Song-Beverly Act Section 1793.2(b)

(Against Defendant FORD MOTOR COMPANY)

47. Plaintiffs incorporate herein by reference each and every allegation contained in the preceding and succeeding paragraphs as though herein fully restated and re-alleged.

48. Pursuant to Civil Code, section 1793.2, subdivision (a) a manufacturer that sells consumer goods in California, for which it has made an express warranty, shall maintain service and repair facilities or designate and authorize independent service and repair facilities to carry out the terms of those warranties.

49. Pursuant to Civil Code, section 1793.2, subdivision (b), when service and repair of goods are necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative.

50. Civil Code, section 1793.2, subdivision (b) further states that goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days and/or within a reasonable time.

51. The sale of the Subject Vehicle was accompanied by express warranties, including a warranty guaranteeing that the Subject Vehicle was safe to drive and not equipped with defective parts, including the electrical system.

52. Plaintiffs delivered the Subject Vehicle to FORD MOTOR COMPANY's authorized service representatives on multiple occasions. The Subject Vehicle was delivered for repairs of defects, which amount to nonconformities to the express warranties that accompanied the sale of the Subject Vehicle.

53. Defendant's authorized facilities did not conform the Subject Vehicle to warranty within 30-days and/or commence repairs within a reasonable time, and FORD MOTOR COMPANY has failed to tender the Subject Vehicle back to Plaintiff in conformance with its warranties within the timeframes set forth in Civil Code section 1793.2(b).

54. Plaintiffs are entitled to justifiably revoke acceptance of the Subject Vehicle under

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Civil Code, section 1794, *et seq*.

55. Plaintiffs hereby revoke acceptance of the Subject Vehicle.

56. Plaintiffs are entitled to replacement or reimbursement pursuant to Civil Code, section 1794, *et seq.*

57. Plaintiffs are entitled to rescission of the contract pursuant to Civil Code section 1794, *et seq.* and Commercial Code, section 2711.

58. Plaintiffs are entitled to recover any "cover" damages under Commercial Code sections 2711, 2712, and Civil Code, section 1794, *et seq.*

59. Plaintiffs are entitled to recover all incidental and consequential damages pursuant to 1794 *et seq* and Commercial Code sections, 2711, 2712, and 2713 *et seq.*

60. Plaintiffs are entitled in addition to the amounts recovered, a civil penalty of up to two times the amount of actual damages in that FORD MOTOR COMPANY has willfully failed to comply with its responsibilities under the Act.

FOURTH CAUSE OF ACTION

Negligent Repair

Against Defendant HANSEL FORD

61. Plaintiffs incorporate herein by reference each and every allegation contained in the preceding and succeeding paragraphs as through herein fully restated and re-alleged.

62. Plaintiffs delivered the Subject Vehicle to Defendant HANSEL FORD for repairs on numerous occasions.

63. Defendant HANSEL FORD owed a duty to Plaintiffs to use ordinary care and skill in storage, preparation, and repair of the Subject Vehicle in accordance with industry standards.

64. Defendant HANSEL FORD breached its duty to Plaintiffs to ordinary care and skill by failing to properly store, prepare, and repair of the Subject Vehicle in accordance with industry standards.

65. Defendant HANSEL FORD's negligent breach of its duties owed to Plaintiffs were a proximate cause of Plaintiffs' damages

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs pray for judgment against Defendants, as follows:

1. For general, special, and actual damages according to proof at trial;
2. For rescission of the purchase contract and restitution of all monies expended;
3. For diminution in value;
4. For incidental and consequential damages according to proof at trial;
5. For civil penalty in the amount of two times Plaintiffs' actual damages;
6. For prejudgment interest at the legal rate;
7. For reasonable attorney's fees and costs of suit; and

For such other and further relief as the Court deems just and proper under the circumstances.

Dated: May 8, 2024

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Plaintiffs, ROSAURA VILLICANA and MARGARITO PEREZ GRANADOS, hereby demand trial by jury in this action.